

CHAPTER 12.

An Act to amend the Elementary School Teachers (Superannuation) Act, 1898, as originally enacted and as applied by any other Act. [7th August 1912.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) The rate of contribution under the Elementary School Teachers (Superannuation) Act, 1898 (hereinafter referred to as "the principal Act"), shall be fixed, in the case of a man, at three pounds twelve shillings and in the case of a woman at two pounds eight shillings a year, and accordingly in paragraph (b) of subsection (2) of section one of the principal Act the words "three pounds twelve shillings" and "two pounds eight shillings" shall be substituted respectively for the words "three pounds" and "two pounds," and in the same subsection the words "or at such increased rate as may for the time being be fixed by the Treasury in accordance with this Act," and subsections (3) and (4) (which authorise the Treasury to vary the rate of contribution) shall be repealed.

Alteration of rates of contribution and benefits.

61 & 62 Vict. c. 57.

(2) Paragraph (d) of subsection (2) of section one and paragraph (a) of subsection (2) of section five of the principal Act (which relate to the amount of superannuation allowances) shall, in their application to persons who attained the age of sixty-five years on or after the first day of April nineteen hundred and twelve, or who may hereafter attain that age, have effect, and be deemed as from the said date to have had effect, as if for the words "ten shillings" there were substituted the words "one pound."

(3) Subsection (1) of section two of the principal Act (which relates to the amount of disablement allowances) shall, in its application to persons who have applied for a disablement allowance on or after the first day of April nineteen hundred and twelve, or who may hereafter apply for such an allowance, have effect and be deemed as from the said date to have had effect as if for the words "one pound" there were substituted the words "one pound ten shillings" and for the words "thirteen shillings and fourpence" there were substituted the words "one pound."

2.—(1) Where a disablement allowance granted under the principal Act has been determined by the Treasury, whether before or after the passing of this Act, and the person to whom

Supplemental provisions as to annuities and allowances.

it was granted attained the age of sixty-five on or after the first day of April nineteen hundred and twelve or hereafter attains that age, he shall, notwithstanding anything in subsection (2) of section two of the principal Act, be entitled to the like deferred annuity and may be granted the like superannuation allowance as if no disablement allowance had ever been granted to him.

(2) Notwithstanding anything in subsection (3) of section two of the principal Act a disablement allowance need not be reconsidered at intervals of not less than three years in any case where the Treasury so direct.

Application
to Isle of Man
and the Island
of Jersey.

63 & 64 Vict.
c. 38.

63 & 64 Vict.
c. 40.

3. Nothing in this Act shall affect a teacher serving in the Isle of Man or the Island of Jersey or in respect of his service as a teacher in such Island unless and until the Legislature of the Isle of Man or the Island of Jersey, as the case may be, adopts this Act or any provisions thereof, and, if either such Legislature does adopt this Act or any provisions thereof, the Elementary School Teachers Superannuation (Isle of Man) Act, 1900, or the Elementary School Teachers Superannuation (Jersey) Act, 1900, as the case may be, shall be construed as if for references therein to the principal Act there were substituted references to the principal Act as amended by this Act or by the provisions adopted, as the case may be :

Provided that either such Legislature may, in adopting this Act or any provisions thereof, substitute some later date for the first day of April nineteen hundred and twelve.

Short title.

4. This Act may be cited as the Elementary School Teachers (Superannuation) Act, 1912, and shall be construed as one with the principal Act, and that Act, the Elementary School Teachers Superannuation (Isle of Man) Act, 1900, the Elementary School Teachers Superannuation (Jersey) Act, 1900, and this Act may be cited together as the Elementary School Teachers (Superannuation) Acts, 1898 to 1912.